

Table of Statutes Referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Public Health Act, 1875 ...	38 & 39 Vict. c. 55.
Small Dwellings Acquisition Act, 1899 ...	62 & 63 Vict. c. 44.
Housing of the Working Classes Act, 1890 ...	53 & 54 Vict. c. 70.
Government of Ireland Act, 1920 ...	10 & 11 Geo. 5. c. 67.
Housing, &c. Act, 1923 ...	13 & 14 Geo. 5. c. 24.
Settled Land Act, 1925 ...	15 & 16 Geo. 5. c. 18.
Law of Property Act, 1925 ...	15 & 16 Geo. 5. c. 20.
Land Charges Act, 1925 ...	15 & 16 Geo. 5. c. 22.
Universities and College Estates Act, 1925 ...	15 & 16 Geo. 5. c. 24.
Housing (Rural Workers) Act, 1926 ...	16 & 17 Geo. 5. c. 56.
Housing Act, 1930 ...	20 & 21 Geo. 5. c. 39.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 ...	23 & 24 Geo. 5. c. 32.
Housing Act, 1936 ...	26 Geo. 5 & 1 Edw. 8. c. 51.
Housing (Financial Provisions) Act, 1938 ...	1 & 2 Geo. 6. c. 16.
Housing (Rural Workers) Amendment Act, 1938 ...	1 & 2 Geo. 6. c. 35.
Hire Purchase Act, 1938 ...	1 & 2 Geo. 6. c. 53.
Building Societies Act, 1939 ...	2 & 3 Geo. 6. c. 55.
Water Act, 1945 ...	8 & 9 Geo. 6. c. 42.
Building Materials and Housing Act, 1945 ...	9 & 10 Geo. 6. c. 20.
Housing (Financial and Miscellaneous Provi- sions) Act, 1946 ...	9 & 10 Geo. 6. c. 48.
New Towns Act, 1946 ...	9 & 10 Geo. 6. c. 68.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948 ...	11 & 12 Geo. 6. c. 26.
National Assistance Act, 1948 ...	11 & 12 Geo. 6. c. 29.

CHAPTER 61

Housing (Scotland) Act, 1949

ARRANGEMENT OF SECTIONS

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EXTENSION OF PROVISIONS AS TO HOUSING OF WORKING CLASSES TO HOUSING OF ALL MEMBERS OF THE COMMUNITY

Section.

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*Exchequer Contributions for Improvement of Housing
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Section.

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An Act to amend the Housing (Scotland) Acts, 1925 to 1946; to promote the improvement of housing accommodation in Scotland by authorising the making of contributions out of the Exchequer and of grants by local authorities; to authorise the making out of the Exchequer of contributions in addition to the contributions payable under the Housing (Financial Provisions) (Scotland) Act, 1946, in certain cases, and of contributions in respect of the provision of hostels and of building experiments in Scotland; to extend and amend certain provisions of the Small Dwellings Acquisition Act, 1899, and the Building Materials and Housing Act, 1945, in their application to Scotland; and for purposes connected with the matters aforesaid.

[30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I

EXTENSION OF PROVISIONS AS TO HOUSING OF WORKING CLASSES TO HOUSING OF ALL MEMBERS OF THE COMMUNITY

1. For the purpose of extending the provisions of the Housing (Scotland) Acts, 1925 to 1946, so as to enable account to be taken of the housing conditions and housing needs of all members of the community, the provisions of the said Acts specified in the first column of the First Schedule to this Act shall have effect subject to the amendments specified in relation to those provisions respectively in the second column of that Schedule, being amendments whereof the effect is to—

Deletion of references to the working classes in certain provisions of the Housing (Scotland) Acts, 1925 to 1946.

(a) remove the limitation confining—

(i) the duties of a local authority under section twenty-two of the Act of 1930 with respect to the consideration of the needs of their district with respect to the provision of further housing accommodation and the preparation and submission to the Secretary of State of proposals for the provision of new houses ; and

(ii) the power of a local authority under section forty-three of the Act of 1925 to provide housing accommodation ;

to the provision of housing accommodation, and houses, for the working classes ;

(b) extend to all dwellings the powers conferred on a local authority by Part I of the Act of 1925 and Part II of the Act of 1930 with respect to the repair, demolition and closing of insanitary dwellings occupied, or of a type suitable for occupation, by persons of the working classes ;

(c) extend to all persons the provisions of Part I of the Act of 1930 for securing the protection of persons of the working classes who will be displaced as a result of action taken under a resolution of a local authority declaring an area to be a clearance area ;

(d) remove the limitation confining to houses for the working classes the class of houses for the purpose of the construction, improvement or purchase of which money may be lent by the Public Works Loan Commissioners under section seventy-three of the Act of 1925 ;

(e) remove the limitation confining the obligations with respect to re-housing imposed by section seventy-nine

PART I
—cont.

- of and the Fifth Schedule to the Act of 1925 on persons who acquire land under an Act or order to the rehousing of persons of the working classes ; and
- (f) make adaptations of the said Acts consequential on the making of the amendments whereof the effect is that specified in the foregoing paragraphs.

PART II

FINANCIAL ASSISTANCE TOWARDS IMPROVEMENT OF HOUSING
ACCOMMODATION*Exchequer Contributions for Improvement of Housing
Accommodation by Local Authorities*

Exchequer
contributions
towards losses
incurred by
local
authorities in
improving
housing
accommoda-
tion.

2.—(1) With a view to encouraging the improvement of housing accommodation by local authorities, the Secretary of State may approve proposals (hereafter in this Part of this Act referred to as “improvement proposals”) submitted to him by a local authority for—

- (a) the provision of dwellings by the authority by means of the conversion of houses or other buildings ;
 - (b) the improvement of dwellings by the authority ;
- and may, subject to and in accordance with the provisions of this Part of this Act, make, out of moneys provided by Parliament, contributions towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals.

(2) Before approving any improvement proposals the Secretary of State shall satisfy himself as to the following requirements, that is to say,—

- (a) that, as respects dwellings to be provided in accordance with the proposals, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works necessary for the conversion of the buildings in question, and, as respects dwellings to be improved in accordance with the proposals, that the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the improvements ; and
- (b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction and physical condition, and the provision of services and amenities, as may be specified for the purposes of this section by the Secretary of State :

Provided that

- (i) if, in relation to all or any of the said dwellings the Secretary of State is of opinion that the period mentioned in paragraph (a) of this subsection is likely to be

less than thirty years he may, notwithstanding that fact, approve the proposals if he considers it expedient in all the circumstances to do so and if he is satisfied that the said period is likely to be more than ten years ; and

- (ii) if, in relation to all or any of the said dwellings, the Secretary of State is not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, he may, notwithstanding that fact, approve the proposals if he is satisfied that, in all the circumstances of the case, conformity with that requirement would be not practicable at a reasonable expense.

3.—(1) A contribution under the last foregoing section towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall be a sum equal to three-quarters of that loss, payable annually for the period of twenty financial years beginning with the year in which the carrying out of the proposals was completed.

Nature, and
amounts, of
contributions.

(2) The last foregoing subsection shall in relation to a local authority for any area in the Highlands and Islands as defined in the Housing (Agricultural Population) (Scotland) Act, 1938, have effect with the substitution for the words “ three-quarters ” of the words “ seven-eighths ”.

4.—(1) For the purposes of this Part of this Act, the amount of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall be determined by the Secretary of State.

Determination
of annual
loss.

(2) For the purpose of a determination under the last foregoing subsection regard shall be had to expense proposed to be incurred by the local authority in acquiring interests in land for the purpose of giving effect to the proposals, the estimated cost of executing works of conversion or improvement in accordance with the proposals, the annual income which, if effect were not given to the proposals, might reasonably be expected to accrue to the authority from interests owned by them in buildings proposed to be converted or dwellings proposed to be improved, and the annual income which may reasonably be expected to accrue to the authority from the dwellings provided or improved as a result of giving effect to the proposals, and to any other matter which appears to the Secretary of State to be relevant.

(3) It shall be the duty of a local authority by whom improvement proposals are submitted to the Secretary of State to furnish

PART II
—cont.

to him such estimates and such particulars with respect to the proposals as he may require for the purposes of this section.

Local
authorities'
contributions.

5. A local authority by whom dwellings have been provided or improved in accordance with approved improvement proposals shall make, for each financial year for which a contribution is payable under section two of this Act by the Secretary of State towards the annual loss likely to be incurred by the authority as a result of giving effect to those proposals, a contribution equal to the difference between the amount of that loss and the amount of the contribution payable as aforesaid by the Secretary of State.

Consequential
adaptations of
Housing
(Scotland) Acts,
1925 to 1946.

6. The provisions of the Housing (Scotland) Acts, 1925 to 1946, specified in the Second Schedule to this Act shall have effect subject to the adaptations therein specified.

Duty of local
authority to
submit
particulars of
properties to
be included in
improvement
proposals.

7.—(1) It shall be the duty of every local authority within three months or such other period as the Secretary of State may specify after receipt by them of a notice by the Secretary of State requiring them so to do to prepare and submit to him such particulars as may be specified in the notice of houses and other buildings to be included in improvement proposals under section two of this Act.

(2) A notice given under the last foregoing subsection may relate to the whole or to one or more parts of the local authority's district.

(3) It shall be the duty of a local authority by whom particulars have been submitted in pursuance of a notice given under subsection (1) of this section to prepare and submit to the Secretary of State, within three months after being required by him so to do, improvement proposals relating to any or all of the houses or buildings specified in the said notice.

*Exchequer Contributions for Improvement of Housing
Accommodation by Development Corporations*Exchequer
contributions
towards losses
incurred by
development
corporations
in improving
housing
accommoda-
tion.

8. The Secretary of State may approve any proposals for the provision or improvement of dwellings submitted to him by a development corporation which he would have power to approve under the foregoing provisions of this Part of this Act if they were submitted to him by a local authority, and the like contribution shall be made by the Secretary of State to a development corporation out of moneys provided by Parliament towards the annual loss likely to be incurred by the corporation as a result of giving effect to proposals approved under this section as would have been made by him had the proposals been submitted by a local authority.

*Grants by Local Authorities for Improvement of Housing
Accommodation by Persons other than Local Authorities***PART II**
—cont.

9.—(1) Subject to the provisions of this Part of this Act, a local authority may give assistance in respect of—

Grants to persons other than local authorities for improvement of housing accommodation.

(a) the provision of dwellings by a person other than the authority by means of the conversion of houses or other buildings ;

(b) the improvement of dwellings by such a person ;

by way of making a grant (hereafter in this Part of this Act referred to as an “improvement grant”) in respect of expenses incurred for the purpose of the execution of the works of conversion or improvement (hereafter in this Part of this Act referred to as “improvement works”) if, before the improvement works are begun, an application in that behalf is made to the authority by that person (hereafter in this Part of this Act referred to as “the applicant”) and approved by them.

(2) An application under this section for an improvement grant must contain full particulars of the improvement works proposed to be carried out and of the land on which those works are proposed to be carried out, together with plans and specifications of the works and an estimate of the expenses to be incurred for the purposes of the execution thereof, and, where the application relates to the provision or improvement of more than one dwelling, the said estimate must specify the proportion of the estimated expenses that is attributable to each dwelling proposed to be provided or improved.

(3) Before approving an application under this section for an improvement grant the local authority shall satisfy themselves as to the following requirements, that is to say,—

(a) that, as respects dwellings to be provided by means of the improvement works, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works, and, as respects dwellings to be improved by means of the improvement works, the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the works ;

(b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction and physical condition and the provision of services and amenities as may be specified for the purposes of this section by the Secretary of State ;

(c) that the applicant is, in respect of every parcel of land on which improvement works are proposed to be carried out (other than land proposed to be sold or leased to him under section thirty-four of this Act),

PART II
—cont.

either the owner or the lessee under a lease whereof a period of not less than thirty years remains unexpired at the date of the application :

Provided that

- (i) if, in relation to all or any of the said dwellings, the local authority are of opinion that the period mentioned in paragraph (a) of this subsection is likely to be less than thirty years they may, notwithstanding that fact, approve the application if they consider it expedient in all the circumstances to do so and if they are satisfied that the said period is likely to be more than ten years ; and
- (ii) if, in relation to all or any of the said dwellings, the local authority are not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, they may, notwithstanding that fact, approve the application if they are satisfied that, in all the circumstances of the case, conformity with that requirement would be not practicable at a reasonable expense.

(4) No application under this section for an improvement grant shall be entertained unless—

- (a) in a case where the application relates only to the provision or improvement of a single dwelling, the amount of the expenses estimated to be incurred for the purposes of the execution of the improvement works ; or
- (b) in any other case, the proportion of those expenses attributable to each dwelling proposed to be provided or improved ;

is neither less than one hundred pounds or such other amount as may for the time being be prescribed nor more than six hundred pounds or such other amount as may for the time being be prescribed :

Provided that where, in a case falling within paragraph (a) of this subsection, the amount of the expenses estimated to be incurred exceeds six hundred pounds or, as the case may be, the maximum amount for the time being prescribed under this subsection or, in a case falling within paragraph (b) of this subsection, all or any of the proportions of those expenses attributable to the several dwellings exceeds that amount, the local authority may, with the consent of the Secretary of State, entertain the application if they are satisfied that, in all the circumstances of the case, there is good reason so to do.

(5) Where a local authority approve an application under this section they shall notify the applicant of the amount approved by them as being the amount of the expenses which, in their opinion, are properly ascribable to the execution of the improvement works and, where the application relates to the

provision or improvement of more than one dwelling, of the proportion of that amount approved by them as being attributable to each dwelling proposed to be provided or improved.

The said amount is hereafter in this Part of this Act referred to, in relation to improvement works, as the "approved expense" of executing those works, and the proportion of that amount approved under this subsection as being attributable to a dwelling, is so referred to, in relation to that dwelling, as the "approved proportion" of the approved expense.

(6) A local authority may in any case refuse to approve an application under this section on any grounds that seem to them sufficient, and shall refuse to approve any such application in respect of any dwelling to be provided or improved by means of improvement works if assistance has been given in respect of that dwelling under any of the following enactments, that is to say—

- (a) paragraph (b) of subsection (1) of section four of the Housing (Agricultural Population) (Scotland) Act, 1938 ;
- (b) section one of the Hill Farming Act, 1946 ;
- (c) section seventy-seven of the Agriculture (Scotland) Act, 1948.

(7) The Secretary of State may give directions to any local authority or to local authorities generally requiring that any application under this section or all such applications of any class specified in the directions shall not be approved except with the consent of the Secretary of State (which may be granted subject to conditions) and it shall be the duty of any local authority to whom such directions are issued to comply therewith.

10.—(1) The amount which may be paid by way of an improvement grant in respect of expenses incurred for the purpose of the execution of any improvement works shall be such fraction of the approved expense of executing those works, not exceeding one-half thereof, as may be determined by the local authority when they approve the application for the grant:

Amounts, and
payment, of
improvement
grants.

Provided that where—

- (i) the application for the improvement grant could not have been entertained but for the proviso to subsection (4) of the last foregoing section ; and
- (ii) the local authority are satisfied that the expense of executing the improvement works was materially enhanced by reason of measures taken to preserve the architectural or historic interest of the house or building to which the application relates,

the amount of the improvement grant may be such fraction of

PART II
—cont.

the approved expense of executing the works, in excess of one-half thereof, as may, with the consent of the Secretary of State, be determined as aforesaid.

(2) An improvement grant in respect of expenses incurred for the purpose of the execution of improvement works may be paid either after completion of the works or partly in instalments from time to time as the works progress and as to the balance after the completion of the works:

Provided that where the grant is to be paid partly in instalments, the aggregate of the instalments paid shall not at any time before the completion of the works exceed one-half of the aggregate cost of the works executed up to that time.

(3) The payment of an improvement grant or of an instalment or the balance thereof shall be conditional upon the works or, as the case may be, the part of the works which the applicant considers will entitle him to payment of the instalment or balance being executed to the satisfaction of the local authority.

Duty of local
authority to
fix rents.

11. It shall be the duty of a local authority, at the time at which they approve an application under this Part of this Act for an improvement grant in respect of expenses incurred for the purpose of the execution of any improvement works, to fix, for the purposes of this Part of this Act, with respect to—

- (a) every dwelling to be provided by means of the works ;
and
- (b) every dwelling to be improved by means of the works,
being a dwelling which the authority are satisfied has
not been let as a dwelling at any time during the period
of five years immediately preceding the date of the
application,

the maximum rent that may be paid in respect of the dwelling.

Conditions to
be observed
with respect
to dwellings.

12.—(1) In the case of a dwelling in respect of the provision or improvement of which assistance has been given under section nine of this Act, the following conditions shall, subject to the provisions of this Part of this Act, be observed with respect to the dwelling for a period of twenty years beginning with the day on which in the opinion of the local authority it first becomes fit for occupation after the completion of the improvement works, and shall, so long as they are required to be so observed, be deemed to be part of the terms of any lease or tenancy of the dwelling, and shall be enforceable accordingly:—

- (a) the dwelling shall not be used for purposes other than those of a private dwelling-house ;
- (b) the dwelling shall not be occupied except by the owner thereof or a tenant ;

- (c) the rent payable by a tenant of the dwelling shall not exceed—

(i) in a case where a maximum rent with respect to the dwelling has been fixed under the last foregoing section, the amount thereof ; or

(ii) in any other case, an amount equal to the aggregate of the rent at which the dwelling was last let before the improvement works were begun and a sum calculated at a rate per annum not exceeding six per cent. of the fraction of the approved expense of executing those works or the approved proportion of that expense (according as the works were for the improvement of a single dwelling or of two or more dwellings) that fell to be borne by the applicant for the improvement grant ;

and no fine, premium or other like sum shall be taken in addition to the rent ;

- (d) the owner of the dwelling shall, on being required so to do by the local authority, certify that the conditions specified in the foregoing paragraphs are being observed with respect to the dwelling, and any tenant of the dwelling shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition ;
- (e) all reasonable steps shall be taken to secure the maintenance of the dwelling so as to be in all respects fit for human habitation ;
- (f) in the event of a tenant assigning his interest in, or otherwise parting with the possession of, the dwelling, it shall not be lawful for any person in consideration thereof to make any payment other than rent or for the tenant to receive, directly or indirectly, any such payment.

(2) In the event of a breach of any of the conditions specified in the last foregoing subsection during the period during which they are required by that subsection to be observed with respect to a dwelling, or in the event of the voluntary alienation of a dwelling by the owner thereof during the said period, the following provisions shall have effect :—

- (a) where the improvement works by means of which the dwelling was provided or improved were works only for the provision or improvement of that dwelling, the appropriate proportion of any sums paid by the local authority by way of improvement grant in respect of the expenses incurred for the purpose of executing those works, together, in the case of each such sum, with compound interest on that proportion thereof as

PART II
— *cont.*

from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall, on being demanded by the local authority, forthwith become payable to them by the owner for the time being of the dwelling ;

- (b) in any other case, the appropriate proportion of a part of any such sums as aforesaid bearing to the whole thereof the same proportion that the approved proportion of the approved expense of executing the improvement works bears to the whole of the approved expense of executing those works, together, in the case of each part of a sum, with compound interest on the appropriate proportion thereof as from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall become payable as aforesaid :

Provided that—

- (i) if the local authority are satisfied that the breach is capable of being remedied, they may, with the consent of the Secretary of State, and subject to such conditions (if any) as he may approve, direct that the operation of the foregoing provisions of this subsection shall, in relation to the breach, be suspended for such period as appears to them to be necessary for enabling the breach to be remedied and, if the breach is remedied within that period, may direct that the said provisions shall not have effect in relation to the breach ; and
- (ii) if the local authority are satisfied that the breach, although not capable of being remedied, was not due to the act, default or connivance of the owner of the dwelling, they may, with the like consent and subject to such conditions as aforesaid, direct that the said provisions shall not have effect in relation to the breach.

In this subsection the expression “ the appropriate proportion ”, in relation to a sum or part of a sum, means a part thereof proportionate to the extent to which the period during which conditions are required by subsection (1) of this section to be observed with respect to the dwelling remains unexpired at the date of the occurrence of the breach of conditions or of the voluntary alienation of the dwelling, as the case may be.

(3) Upon satisfaction of a liability of an owner of a dwelling to make payment under the last foregoing subsection to a local authority, observance, with respect to the dwelling, of the conditions specified in subsection (1) of this section shall cease to be requisite.

PART II
—cont.

(4) The sheriff within whose jurisdiction is situate any such dwelling as is mentioned in subsection (1) of this section may, on the application of the local authority, whether or not any other relief is claimed, grant an interdict restraining a breach or apprehended breach, in relation to the dwelling, of any of the conditions specified in that subsection other than the condition specified in paragraph (d) thereof.

(5) Where a local authority pay an improvement grant or the first instalment of an improvement grant in respect of a dwelling, they shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form specifying (i) the conditions required by this section to be observed with respect to the dwelling and (ii) the provision of subsection (2) of this section whereby on a breach of any of the aforesaid conditions or on a voluntary alienation of the dwelling within the period during which the aforesaid conditions are required to be observed the owner for the time being becomes liable to repay to the local authority the amount set forth in that subsection, and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

(6) In the event of a breach of any of the aforesaid conditions with respect to a dwelling or of a voluntary alienation of the dwelling during the period aforesaid it shall be competent to the local authority to make a charging order in favour of themselves for the amount that becomes payable to them as aforesaid, and the provisions of section twenty-two of the Act of 1925 shall, with any necessary modifications, apply to any such charging order in like manner as they apply to a charging order made under section twenty-one of that Act.

(7) In any case where, in pursuance of subsection (3), observance of the conditions specified in subsection (1) of this section ceases to be requisite with respect to a dwelling, the local authority shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form stating that the said conditions no longer apply to the dwelling, and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

(8) The provisions of this section (other than paragraph (c) of subsection (1)) shall apply to a dwelling used as a residence by a minister or full-time lay missionary of any religious denomination by virtue of his office as such minister or missionary in like manner as if he were a tenant of the dwelling.

13.—(1) The owner of a dwelling in respect of the provision or improvement of which assistance has been given under section nine of this Act or the holder of a heritable security over the dwelling being a heritable creditor entitled to exercise his power of sale may, at any time during the period during which the conditions specified in subsection (1) of the last foregoing section are

Repayment of improvement grants.

PART II
—cont.

required by that subsection to be observed with respect to the dwelling, pay to the local authority the like amount as would become payable to them under subsection (2) of that section in the event of a breach at that time of any of those conditions and on the making of the payment observance, with respect to the dwelling, of those conditions shall cease to be requisite.

(2) A sum paid under the last foregoing subsection by a heritable creditor shall be treated as part of the sum secured by the heritable security.

(3) In any case where, in pursuance of subsection (1) of this section, observance of the conditions therein referred to ceases to be requisite with respect to a dwelling, subsection (7) of the last foregoing section shall apply in like manner as it applies in the case therein mentioned.

Exchequer
contributions
towards
improvement
grants.

14.—(1) The Secretary of State may, out of moneys provided by Parliament, make a contribution towards the expense incurred by a local authority in making an improvement grant.

(2) A contribution under the last foregoing subsection shall be a sum equal to three-quarters of the annual loan charges referable to the amount of the grant payable annually for the period of twenty financial years beginning with the year in which were completed the improvement works in respect of the expenses incurred for the purpose of the execution of which the grant was made.

(3) For the purposes of this section, the annual loan charges referable to the amount of an improvement grant shall (whatever may be the manner in which the local authority have provided or intend to provide the money requisite for making the grant) be the annual sum that, in the opinion of the Secretary of State, would fall to be provided by the local authority for the payment of interest on, and the repayment of, an amount, equal to the amount of the grant, of borrowed money the period for the repayment of which is twenty years.

(4) A local authority shall pay to the Secretary of State three-quarters of any sum recovered by them by virtue of subsection (2) of section twelve of this Act or paid to them under the last foregoing section, and any sum received by the Secretary of State under this section shall be paid into the Exchequer.

(5) Subsections (2) and (4) of this section shall, in the case of a local authority for any area in the Highlands and Islands as defined in the Housing (Agricultural Population) (Scotland) Act, 1938, have effect with the substitution for the words "three-quarters" of the words "seven-eighths".

Provisions as
to further
improvement
grants.

15.—(1) No assistance shall be given under section nine of this Act in respect of the provision of dwellings by means of the conversion of dwellings in relation to which the conditions

specified in subsection (1) of section twelve of this Act for the time being apply.

PART II
—cont.

(2) Where by virtue of the giving on any occasion of assistance under section nine of this Act in respect of the improvement of a dwelling the conditions specified in subsection (1) of section twelve of this Act are required to be observed with respect to the dwelling before the observance thereof by virtue of the giving of assistance on a previous occasion has ceased to be requisite, the provisions of sections twelve and thirteen of this Act and of subsections (4) and (5) of section fourteen thereof shall apply in relation to the dwelling as regards each occasion on which assistance is so given as if it were the only occasion on which it were so given:

Provided that in relation to any period during which the said conditions are simultaneously required to be observed by virtue of the giving of assistance on more than one occasion, the condition as to rent applicable by reason of the giving of assistance on the last occasion shall be deemed to be the condition as to rent also by reason of the giving of assistance on any previous occasion.

16. If, in the case of a dwelling in respect of the provision or improvement of which assistance has been given under section nine of this Act, being a dwelling to which works (other than works for the purposes of the execution of which assistance has been so given) have been executed at a time when the conditions specified in subsection (1) of section twelve of this Act are required to be observed with respect to the dwelling, an application in that behalf is made to the local authority, they may direct that for the purposes of this Part of this Act the maximum amount of the rent payable by the occupier of the dwelling shall be increased by such amount as may be specified in the direction, not exceeding an amount calculated at a rate per annum of eight per cent. of the cost of executing the works; and where a direction is given under this section in relation to a dwelling on any occasion—

Power to
increase rent
under Part II
in certain cases.

- (a) references in paragraph (c) of that subsection to the amount which the rent payable by the tenant of the dwelling is not to exceed shall, as respects any period after the giving of the direction and before a subsequent direction is given under this section in relation to the dwelling or the direction is superseded by reason of the application of the said conditions by virtue of the giving of further assistance under the said section nine, whichever event first occurs, be construed in relation to the dwelling, for the purposes of this Part of this Act and, where subsection (2) of section seventeen of this Act applies, for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942, as

PART II
—cont.

references to that amount as increased in accordance with the direction given on that occasion and with any direction given under this section in relation to the dwelling on a previous occasion which has not been superseded as aforesaid; and

- (b) the local authority shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form setting forth the effect of the direction, and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

Provision as
to dwellings
improved
under Housing
(Rural
Workers) Act,
1926.

17.—(1) No assistance shall be given under section nine of this Act in respect of the provision of dwellings by means of the conversion of dwellings in relation to which the conditions specified in section three of the Housing (Rural Workers) Act, 1926, for the time being apply.

(2) Where assistance is given under the said section nine in respect of the improvement of a dwelling in relation to which the conditions aforesaid apply at the time when assistance is so given, the Housing (Rural Workers) Acts, 1926 to 1942, shall have effect in relation to the dwelling as if the conditions specified in subsection (1) of section twelve of this Act were contained in, and applicable by virtue of subsection (1) of section three of the Housing (Rural Workers) Act, 1926, in lieu of the conditions specified therein and in sections five and six of the Housing (Rural Workers) Amendment Act, 1938, and anything which would, or would not, constitute for the purposes of this Part of this Act a breach of the conditions specified in subsection (1) of the said section twelve shall be treated as constituting, or, as the case may be, not constituting a breach of those conditions for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942.

Provisions as
to security
of tenure of
tenants.

18. Where a dwelling in respect of the provision or improvement of which assistance has been given under section nine of this Act is, during the period during which conditions are required by subsection (1) of section twelve of this Act to be observed with respect to the dwelling, let to a person in consequence of his employment by the lessor, the operation of section three of the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 (which restricts the right of a landlord to possession of a dwelling), shall not be excluded by reason of the letting being otherwise than at a rent of two-thirds or more of the rateable value of the dwelling.

*Arrangements by Local Authorities with Housing Associations
and Development Corporations for Improvement of
Housing Accommodation*

PART II
—cont.

19.—(1) A local authority may, with the approval of the Secretary of State, make arrangements with a housing association or development corporation for—

- (a) the provision of dwellings by the association or corporation by means of the conversion of houses or other buildings;
- (b) the improvement of dwellings by the association or corporation.

(2) Arrangements made under this section shall include such terms with regard to such matters, including the rents at which the dwellings to be provided or improved in accordance with the arrangements are to be let, as may appear to the local authority to be expedient in view of the needs of their district in relation to housing and may be approved by the Secretary of State.

(3) Where arrangements are made under this section by a local authority with a housing association or development corporation, the Secretary of State shall, out of moneys provided by Parliament, make to the local authority a contribution of a sum payable annually for the period of twenty financial years beginning with the year in which the carrying out of the arrangements is completed, equal to three-quarters of the annual loss determined by the local authority, with the approval of the Secretary of State, to be likely to be incurred by the association or corporation in carrying out the arrangements, and the local authority shall pay to the association or corporation for that period annual grants each of an amount not less than the said sum:

Provided that—

- (a) if the Secretary of State is satisfied that the association or corporation have made default in giving effect to the terms of the arrangements, he may reduce the amount of the contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just; and
- (b) if the Secretary of State reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(4) Subsection (2) of section four of this Act shall have effect in relation to a determination under the last foregoing subsection of the amount of the annual loss likely to be incurred

Arrangements
by local
authorities
with housing
associations
and
development
corporations
for
improvement
of housing
accommoda-
tion.

PART II
—cont.

by a housing association or development corporation in carrying out arrangements made under this section as it has effect in relation to a determination of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals with the substitution, for references to the local authority, of references to the association or corporation, for references to the proposals, of references to the arrangements and, for the reference to the Secretary of State, of a reference to the local authority.

(5) Subsection (3) of this section shall in relation to a local authority for any area in the Highlands and Islands as defined in the Housing (Agricultural Population) (Scotland) Act, 1938, have effect with the substitution for the words “three-quarters” of the words “seven-eighths”.

Reduction of Amount of Exchequer Contributions

Reduction of
amount of
Exchequer
contributions.

20.—(1) An order under section fourteen of the Act of 1946 (which provides for the periodical review of contributions made under that Act by the Secretary of State) may provide—

- (a) as respects proposals approved by him under section two or section eight of this Act after such date as may be specified in the order, for reducing the proportion of the annual loss likely to be incurred by a local authority or development corporation by reference to which the amount of a contribution by him under either of those sections is to be computed ;
- (b) as respects improvement grants made in pursuance of applications approved by local authorities after that date, for reducing the proportion of the annual loan charges referable to the amount of any such grant by reference to which the amount of a contribution by him under section fourteen of this Act is to be computed ;
- (c) as respects arrangements made after that date under the last foregoing section for reducing the proportion of the annual loss likely to be incurred by a housing association or development corporation by reference to which the amount of a contribution by him under subsection (3) of that section is to be computed :

Provided that none of the said proportions shall be reduced to less than two-thirds.

(2) Any such order providing for reducing the proportion of the annual loan charges referred to in paragraph (b) of the last foregoing subsection shall provide for reducing, to a corresponding extent, in relation to improvement grants made as mentioned in that paragraph the proportion of any sum required by subsection (4) of section fourteen of this Act to be paid to the Secretary of State.

Supplementary Provisions

PART II

—cont.

Regulations.

21.—(1) The Secretary of State may by statutory instrument make, with the consent of the Treasury, regulations prescribing anything required or authorised by this Part of this Act to be prescribed.

(2) A statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

22. A dwelling which has been provided or improved—

House
provided or
improved not
to be deemed
a new house.

(a) in giving effect to approved improvement proposals or arrangements with a housing association or development corporation; or

(b) by improvement works under this Act,

shall not, by reason only of such provision or improvement be deemed to be a new dwelling-house within the meaning of any local Act notwithstanding anything contained in such Act.

23. A dwelling provided or improved—

Valuation of
dwellings
provided or
improved
under this Act.

(a) by means of improvement works in respect of which an improvement grant has been made, or

(b) in pursuance of arrangements made by a local authority with a housing association or development corporation

shall not, so long as the conditions set forth in subsection (1) of section twelve of this Act apply to the dwelling, or so long as contributions are payable in respect of the dwelling under subsection (3) of section nineteen of this Act, as the case may be, be entered in the valuation roll at a gross amount exceeding the maximum rent (exclusive of occupier's rates) payable under the said subsection (1) or the rent (exclusive of occupier's rates) approved under subsection (2) of the said section nineteen, as the case may be.

24. For removal of doubt it is hereby declared that nothing in this Part of this Act excludes the application of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, to a dwelling provided or improved—

Application of
Rent
Restrictions
Acts to dwelling
provided or
improved under
this Act.

(a) by means of improvement works in respect of which an improvement grant has been made, or

(b) in pursuance of arrangements made by a local authority with a housing association or development corporation:

Provided that in their application to any such dwelling the said Acts shall have effect subject to the following modifications:—

(i) the provisions thereof with regard to standard rent and permitted increases of rent shall not apply during the period during which the conditions set forth in subsection (1) of section twelve of this Act are required to be

PART II
—cont.

observed with respect to the dwelling or, as the case may be, contributions are payable in respect of the dwelling under subsection (3) of section nineteen of this Act ; and

- (ii) the rent under the first tenancy of the dwelling granted after the expiry of the aforesaid period shall be deemed to be the standard rent for the purposes of the said Acts.

Interpretation
of Part II.

25.—(1) In this Part of this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“owner”, in relation to a dwelling, means the person who is for the time being entitled to receive the rent of the dwelling or who, if the dwelling were let, would be so entitled and includes such a lessee as is mentioned in paragraph (c) of subsection (3) of section nine of this Act ;

“voluntary alienation” includes alienation by sale, gift, or other transaction or transactions whereby the right or interest of the owner is transferred to another person, and the granting of a lease for a period of thirty years or upwards, but does not include a transfer by operation of law.

(2) References in this Part of this Act to the improvement of dwellings shall be construed as including references to the alteration or enlargement thereof and to the execution of works of repair thereto, not being works of ordinary repair, and as including also references to the execution of works of ordinary repair thereto so far, but so far only, as the execution thereof is incidental to or connected with the execution of works of improvement, alteration or enlargement or of works of repair not being works of ordinary repair, and in this Part of this Act the expression “improved” shall be construed accordingly.

(3) A dwelling shall not be deemed for the purposes of this Part of this Act to be used for purposes other than those of a private dwelling-house by reason only that part thereof is used as a shop or office, or for business, trade or professional purposes.

(4) In determining for the purposes of this Part of this Act whether, as regards a dwelling provided or improved by means of improvement works in respect of the provision or improvement of which assistance has been given under section nine of this Act, a breach has occurred of the condition required by this Part of this Act to be observed as to the rent payable by an occupier of the dwelling, any property which, in the absence of express provision, would pass upon a conveyance in common form of the dwelling, and any yard, garden, outhouse and pertinents belonging to or usually enjoyed with the dwelling, shall be deemed to form part of the dwelling.

PART III

EXCHEQUER CONTRIBUTIONS FOR NEW HOUSES AND HOSTELS
AND FOR BUILDING EXPERIMENTS

26.—(1) Where the Secretary of State is satisfied, on an application made to him by a local authority with respect to a house which the authority have provided or intend to provide, that the cost of providing the house has been or will be substantially enhanced by expenses attributable to measures taken with his consent by the authority in the construction of the house (whether by the use of stone or other special material or otherwise howsoever) in order to preserve the character of the surroundings, then, if the house is or becomes one in respect of which an annual Exchequer contribution is payable under the Act of 1946—

Increased amount of Exchequer contribution for houses constructed to preserve character of surroundings.

- (a) the Secretary of State may, if he thinks fit, undertake to make, and make, in respect of the house, in addition to the appropriate contribution under section one or section three of the said Act payment, out of moneys provided by Parliament, to the local authority for a period of sixty years of an annual contribution of such amount not exceeding five pounds as he may determine; and
- (b) the local authority shall make, in addition to the contribution payable by them under section two or section four of the said Act, an annual contribution for the period of sixty years of an amount equal to one half of any additional contribution which the Secretary of State has undertaken to make under this section.

(2) Section three of the Housing (Scotland) Act, 1944 (which authorises the Secretary of State to make payments to the Scottish Special Housing Association in respect of certain houses provided by them), shall have effect as if the last foregoing subsection were included among the enactments mentioned in subsection (2) of the said section three.

(3) This section shall not apply to a house completed before the commencement of this Act.

27.—(1) In respect of a new building provided, or a building converted, by a local authority or development corporation for use as a hostel, being a building approved for the purposes of this subsection by the Secretary of State, the Secretary of State shall make to the authority or corporation, out of moneys provided by Parliament, a contribution—

Exchequer contributions for hostels.

- (a) payable annually for such number of financial years, not exceeding sixty, as he may determine, being years beginning with the year in which the building was, or, as the case may be, the works of conversion were, completed;

PART III
—*cont.*

- (b) of such amount, not exceeding the sum produced by multiplying seven pounds by the number of bedrooms contained in the building, as he may determine having regard to the standard of construction and amenity of the building.

(2) The like contribution, if any, shall be payable out of moneys provided by Parliament in respect of a building which, under arrangements made under section twenty-six of the Act of 1935 by a local authority with a housing association or development corporation, has been provided or converted by that association or corporation for use as a hostel as would be payable if the building had been provided or converted by the local authority for such use, and shall be paid by the Secretary of State to the authority, who shall pay to the association or corporation by way of annual grant an amount not less than the contribution :

Provided that—

- (a) if the Secretary of State is satisfied that the association or corporation have made default in giving effect to the terms of the arrangements, he may reduce the amount of the contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just ;
- (b) if the Secretary of State reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.
- (3) Where, in pursuance of an agreement or order made under the New Towns Act, 1946, a building provided or converted by a development corporation for use as a hostel, being a building in respect of which a contribution is for the time being payable under subsection (1) or (2) of this section, is transferred to a local authority, then—
- (a) no further sums shall, after the time of the transfer, be payable under the said subsection (1) or the said subsection (2), as the case may be ; but
- (b) the Secretary of State may, if he thinks fit, pay to the authority out of moneys provided by Parliament, sums not exceeding any sums which would, after that time, have become payable by him under the said subsection (1) or the said subsection (2), as the case may be, in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.
- (4) Where a building which, under arrangements made by a local authority under section twenty-six of the Act of 1935, has

been provided or converted by a housing association for use as a hostel becomes vested in the local authority, and at the time of the vesting the building is one in respect of which a contribution is payable under subsection (2) of this section, then—

- (a) no further sums shall, after the time of the vesting, be payable under that subsection ; but
- (b) the Secretary of State may, if he thinks fit, pay to the authority, out of moneys provided by Parliament, sums not exceeding any sums which would, after that time, have become payable by him under that subsection in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.

(5) A building approved for the purposes of subsection (1) of this section shall not be included amongst the buildings an account of the income and expenditure of a local authority in respect whereof the authority are required by section thirty-nine of the Act of 1935 to keep :

Provided that if at any time the Secretary of State is satisfied that the building has ceased to be used as a hostel he may direct that it shall be so included.

(6) This section shall not apply to a new building completed or a building converted before the commencement of this Act or to any premises provided for the purpose of Part III of the National Assistance Act, 1948, by a local authority or to any housing accommodation for single persons in a hostel to which subsection (4) of section one of the Act of 1946 applies.

(7) In this section the expression “hostel” means a building wherein is provided, for persons generally or for any class or classes of persons, residential accommodation (otherwise than in separate and self-contained dwellings) and board.

28. Where—

- (a) the Secretary of State is satisfied on an application made to him by a local authority or the Scottish Special Housing Association or a development corporation with respect to a house which they have provided that the cost of providing the house has been substantially enhanced by reason of either or both of the following matters, namely,—

Exchequer
contributions
for
building experi-
ments.

- (i) that, with his consent, the house has been constructed in whole or in part by an experimental method ;

- (ii) that, with his consent, materials have, for the purposes of experiment, been used in the construction of the house or equipment or fittings have, for those purposes, been installed in the house in the course of the construction thereof ; or

PART III
—cont.

- (b) with the consent of the Secretary of State expense is incurred by a local authority or the Scottish Special Housing Association or a development corporation in incorporating or installing in a house, otherwise than in the course of the construction thereof, materials, equipment or fittings for the purposes of experiment;

then, subject to such conditions (if any) as the Treasury may determine, the Secretary of State may make to the authority or Association or corporation out of moneys provided by Parliament, a contribution of such amount and payable in such manner as he may determine.

PART IV

MISCELLANEOUS AMENDMENTS OF LAW

Power of local authorities to make advances for purpose of increasing housing accommodation.

29.—(1) A local authority may, subject to such conditions as may be approved by the Secretary of State, advance money, subject to the provisions hereinafter contained, to any persons for the purpose of—

- (a) acquiring houses;
- (b) constructing houses;
- (c) converting into houses buildings which have been acquired by those persons or acquiring buildings and converting them into houses; or
- (d) altering, enlarging, repairing or improving houses;

whether the houses or buildings are within or outside the district of the authority.

(2) Before advancing money under this section for the purpose specified in paragraph (a) of the last foregoing subsection the local authority shall satisfy themselves that the house or houses to be acquired is or are, or will be made, in all respects fit for human habitation, and before so advancing money for any of the purposes specified in paragraphs (b) to (d) of that subsection the local authority shall satisfy themselves that the house or houses to be constructed, altered, enlarged, repaired or improved or into which the building or buildings is or are to be converted, as the case may be, will, when the construction, alteration, enlargement, improvement, repair or conversion has been completed, be in all respects so fit.

(3) The following provisions shall have effect with respect to an advance under this section:—

- (a) the advance, together with interest thereon, shall be secured by a bond and disposition in security of lands the subject of the carrying out of the purpose for which the advance is made or by an assignation in security of such a lease of those lands as is mentioned in paragraph (f) of this subsection;

PART IV
—cont.

- (b) the amount of the principal of the advance shall not exceed, in the case of a house or houses to be acquired, ninety per cent. of the value of the subjects disposed or assigned in security, and, in any other case, ninety per cent. of the value which it is estimated the subjects disposed or assigned in security will bear when the construction, conversion, alteration, enlargement, improvement or repair has been carried out ;
- (c) the bond and disposition or assignation in security may provide for repayment being made either by instalments of principal or by an annuity of principal and interest combined so, however, that in the event of any of the conditions subject to which the advance is made not being complied with, the balance for the time being unpaid shall become repayable on demand by the local authority and that the said balance may, in any event, be repaid at any term of Whitsunday or Martinmas by the debtor after one month's written notice of intention to repay has been given to the local authority ;
- (d) where the advance is for any of the purposes specified in paragraphs (b) to (d) of subsection (1) of this section it may be made by instalments from time to time as the works of construction, conversion, alteration, enlargement, improvement or repair progress ;
- (e) the advance shall not be made except after a valuation duly made on behalf of the local authority ; and
- (f) no advance shall be made unless the estate in the lands proposed to be disposed or assigned in security is either ownership or a lease of which a period of not less than ten years in excess of the period fixed for the repayment of the advance remains unexpired on the date on which the assignation in security is granted.

(4) An advance under this section shall not be made in respect of any house if the estimated value thereof subject to feu duty, ground annual or other burden incident to tenure but free from other incumbrances exceeds five thousand pounds, but such an advance may be made in addition to assistance given by the local authority in respect of the same house under any other Act or any other provision of this Act. In the case of an advance for the construction of one or more structurally separate and self-contained flats the estimated value for the purposes of the foregoing limitation shall as respects any flat be the estimated value of the flat.

(5) Section seventy-four of the Act of 1925 shall cease to have effect and paragraphs (a) and (c) of subsection (1) of section seventy-five of that Act and section thirty-four of the Act of 1930 shall cease to have effect except as respects undertakings thereunder given before the commencement of this Act.

PART IV
—cont.

Power of local
authorities to
guarantee
repayment of
advances by
building
societies.

30.—(1) A local authority may, in accordance with proposals in that behalf made by them and approved by the Secretary of State, guarantee the repayment to a society incorporated under the Building Societies Acts, 1874 to 1939, or the Industrial and Provident Societies Acts, 1893 to 1928, of any advances, with interest thereon, made by the society to any of its members for the purpose of enabling them to build or acquire houses, whether within or outside the district of the authority.

(2) Where, upon the submission to the Secretary of State by a local authority of proposals under this section, the Secretary of State is satisfied that the proposed guarantee extends only to the principal of, and interest on, the amount by which the sum to be advanced by the society in question exceeds the sum which would normally be advanced by it without the guarantee of the local authority, and that the liability under the guarantee of the local authority cannot be greater than two-thirds of that principal and interest, the Secretary of State, if he approves the proposals, may, with the consent of the Treasury, undertake to reimburse to the local authority out of moneys provided by Parliament not more than one-half of any loss sustained by them under the terms of the guarantee.

(3) Paragraph 3 of Part I of the Schedule to the Building Societies Act, 1939, (which paragraph specifies, as one of the classes of additional security which may be taken into account in determining the amount of advances by building societies to their members, a guarantee given by a local authority under paragraph (b) of subsection (1) of section seventy-five of the Housing (Scotland) Act, 1925), shall have effect as if after the words "the Housing (Scotland) Act, 1925" there were added the words "or section thirty of the Housing (Scotland) Act, 1949."

(4) Paragraph (b) of subsection (1) of section seventy-five of the Act of 1925 and section three of the Act of 1933 shall cease to have effect except as respects undertakings thereunder given before the commencement of this Act.

Power of local
authorities to
make
allowances
to certain
persons
displaced.

31.—(1) A local authority may pay to any person displaced from a house or building—

- (a) to which a clearance order or a demolition order or a closing order applies; or
- (b) which has been purchased by the local authority under Part III of the Act of 1925 or under the Act of 1930; or
- (c) which is to be demolished by the owner in accordance with an agreement made with the local authority under the Act of 1930,

such reasonable allowance as they think fit towards his expenses in removing, and to any person carrying on any trade or business in any such house or other building they may pay also

such reasonable allowance as they think fit towards the loss which, in their opinion, he will sustain by reason of the disturbance of his trade or business consequent on his having to quit the house or building, and in estimating that loss they shall have regard to the period for which the premises occupied by him might reasonably have been expected to be available for the purpose of his trade or business and the availability of other premises suitable for that purpose.

PART IV
—cont.

(2) The power conferred on a local authority by the last foregoing subsection to make allowances towards the expenses incurred in removing by persons displaced in consequence of the execution by the authority of their powers shall include power to make allowances to persons so displaced temporarily in respect of expenses incurred by them in storage of furniture.

32.—(1) The power of a local authority under Part III of the Act of 1925 to provide housing accommodation shall include power to provide, in connection with the provision of such accommodation for any persons, such facilities for obtaining meals and such laundry facilities and services as accord with the needs of those persons.

Power of local
authorities to
provide
board and
laundry
facilities.

(2) A local authority may make such reasonable charges for meals provided by them by virtue of this section and to persons availing themselves of laundry facilities or services so provided as the authority may determine.

(3) This section shall not authorise the grant of a certificate under the Licensing (Scotland) Acts, 1903 to 1934, for the sale of exciseable liquor in connection with the provision under this section of facilities for obtaining meals.

33.—(1) Without prejudice to their powers under subsection (2) of section forty-three of the Act of 1925 (which, amongst other things, empowers a local authority to fit out, furnish and supply a house erected, converted or acquired by them with all requisite furniture, fittings and conveniences), a local authority shall have power and be deemed always to have had power to sell, or supply under a hire-purchase agreement, furniture to the occupants of houses provided by the authority or by a housing association under arrangements made with the authority, and, for that purpose, to buy furniture.

Power of local
authorities to
sell furniture
to persons
housed by, or
by arrangement
with, them.

(2) In this section the expression "hire-purchase agreement" means a contract to which the Hire Purchase and Small Debt (Scotland) Act, 1932, applies or would apply if the limitation as to value contained in section one of that Act were omitted.

34.—(1) The purposes for which land may be acquired under Part III of the Act of 1925 by a local authority shall include—

Acquisition of
land for
improvement
of housing
accommoda-
tion.

(a) the carrying out thereon by them of works for the purpose of, or connected with, the alteration, enlargement, repair or improvement of an adjoining house;

PART IV
—cont.

(b) the sale or lease of the land under the powers conferred by this section with a view to the carrying out on the land by a person other than the local authority of such works as aforesaid.

(2) where a local authority have acquired any land for the purposes of paragraph (b) of the last foregoing subsection, they may, with the consent of the Secretary of State, sell or let the land to any person for the purpose and under the condition that that person will carry out thereon, in accordance with plans approved by the authority, the works with a view to the carrying out of which the land was acquired.

Amendment
of s. 85 of
Act of 1925.

35. The power of the sheriff under section eighty-five of the Act of 1925, to vary the conditions or restrictions of a feu charter or feu contract or the terms of a lease shall be exercisable in any case where planning permission has been granted under Part II of the Town and Country Planning (Scotland) Act, 1947, for the conversion of a single dwelling into two or more dwellings, in like manner as such power is exercisable on proof to the satisfaction of the sheriff that a house cannot readily be let as a single dwelling but could readily be let if converted into two or more dwellings.

Provisions
as to
re-development
to cease to
have effect.

36. Sections thirteen to eighteen and fifty of the Act of 1935 (which relate to re-development areas) shall cease to have effect except as regards re-development plans approved before the passing of this Act.

Minor
amendments.

37. The amendments specified in the second column of the Third Schedule to this Act being amendments of a minor nature shall be made in the enactments specified in the first column of that Schedule.

Amendment
and extension
of s. 7 of the
Building
Materials and
Housing Act,
1945.

38.—(1) Subsection (1) of section seven of the Building Materials and Housing Act, 1945 (which, in the case of a house constructed under the authority of a building licence granted subject to a condition limiting the price for which the house may be sold or the rent at which it may be let, imposes a penalty on a person who, during the period of four years beginning with the passing of that Act, sells or offers to sell the house for a greater price than the price limited by the condition or lets or offers to let the house at a rent in excess of the rent so limited) shall have effect with the substitution, for the reference to that period, of a reference to the period of eight years beginning with the passing of that Act.

(2) The said subsection (1) shall apply in the case of a sale of, or an offer to sell, a house in course of construction under the authority of a building licence granted as mentioned in

that subsection as it applies to a sale of, or an offer to sell, a house constructed under the authority of a building licence so granted, and the remaining provisions of the said section seven and subsections (3) and (4) of section nine of that Act shall apply accordingly.

PART IV
—cont.

(3) The said subsection (1) shall apply in the case of a sale of, or an offer to sell, a building of any kind converted, or in course of conversion, into a house or houses under the authority of a building licence granted as mentioned in that subsection, and in the case of a letting of, or an offer to let, a house provided by means of the conversion of a building of any kind under the authority of a building licence so granted as it applies to a sale of, or an offer to sell, or, as the case may be, a letting of, or an offer to let, a house constructed under the authority of a building licence so granted, and the remaining provisions of the said section seven and subsections (3) and (4) of section nine of that Act shall, with any requisite modifications, apply accordingly.

(4) For the purposes of the said section seven and of this section, where a building licence in respect of the carrying out of some, but not all, of the work requisite for constructing a house or for converting a building of any kind into a house or houses is granted as mentioned in the said subsection (1), then, notwithstanding that fact, the construction of the house or the conversion of the building shall be deemed to take place or to have taken place, as the case may be, under the authority of the licence.

(5) If, in the case of a house to which the said section seven applies, being a house on which works have been executed after the construction or provision thereof, an application in that behalf is made to the local authority for the purposes of section eight of the said Act of 1945 in the area of which the house is situated, the local authority may direct that for the purposes of the said section seven the price for which the house may be sold and the rent at which it may be let shall be increased by such amounts respectively as may be specified in the direction; and where a direction is given under this subsection in relation to a house on any occasion, references in the said section seven to the price for which the house may be sold and to the rent at which it may be let (other than the first of such references) shall, as respects any period after the giving of the direction and before a subsequent direction is given under this subsection in relation to the house, be construed in relation to the house as references to that price and to that rent as respectively increased in accordance with the direction given on that occasion and with any direction given under this subsection in relation to the house on a previous occasion.

PART IV
—cont.

Amendment
of s. 1 of the
Small
Dwellings
Acquisition
Act, 1899.

39. The limit fixed by subsection (1) of section one of the Small Dwellings Acquisition Act, 1899, on the market value of a house in respect of which an advance may be made under the Small Dwellings Acquisition (Scotland) Acts, 1899 to 1923, shall, in relation to an advance made after the commencement of this Act, be increased from fifteen hundred pounds to five thousand pounds.

Power to
increase rent
fixed under
Housing
(Rural
Workers)
Acts in
certain cases.

40. If, in the case of a dwelling in respect of which assistance has been given under the Housing (Rural Workers) Act, 1926, by way of grant, being a dwelling to which works (other than works in respect of which assistance has been given under that Act by way of grant, or under section nine of this Act) have been executed at a time when conditions contained in the Housing (Rural Workers) Acts, 1926 to 1942, apply in relation to the dwelling, an application in that behalf is made to the local authority by whom the grant was made, they may direct that for the purposes of those Acts the maximum amount of the rent payable by the occupier in respect of the dwelling shall be increased by such amount as may be specified in the direction, not exceeding an amount calculated at a rate per annum of eight per cent. of the cost of executing the works; and where a direction is given under this section in relation to a dwelling on any occasion, the reference in that one of the following provisions which is applicable to the dwelling, namely, paragraph (b) of subsection (1) of section three of the Housing (Rural Workers) Act, 1926, and section six of the Housing (Rural Workers) Amendment Act, 1938, to the amount which the rent payable by the occupier in respect of the dwelling is not to exceed shall, as respects any period after the giving of the direction and before a subsequent direction is given under this section in relation to the dwelling, be construed in relation to the dwelling as a reference to that amount as increased in accordance with the direction given on that occasion and with any direction given under this section in relation to the dwelling on a previous occasion.

Amendment
of s. 16 of Act
of 1930.

41. Where, in pursuance of subsection (2) of section sixteen of the Act of 1930, a local authority have accepted an undertaking that a dwelling house shall not be used for human habitation until the authority, on being satisfied that it has been rendered fit for that purpose, cancel the undertaking, and the house has not been so rendered fit to the satisfaction of the local authority within a period of three years from the date of the acceptance of the undertaking, or from the first day of January, nineteen hundred and forty-nine, whichever is the later, the undertaking shall, if the local authority so resolve, be deemed, for the purposes of subsection (3) of the said section, to have been broken, and the provisions of that subsection shall apply accordingly.

42. Where a building consists wholly of dwelling houses with respect to which closing orders have been made under Part II of the Act of 1930 and such orders have not been determined, the local authority, instead of applying to the Secretary of State for a compulsory purchase order, may, in the case of each of such dwelling houses, recall the closing order and shall have the like power to make a demolition order as they have under subsection (3) of section sixteen of the said Act in the absence or on the breach of such an undertaking as is therein mentioned, and the provisions of Part II of the said Act shall apply accordingly to any such demolition order.

PART IV
—cont.

Substitution
of demolition
for closing
order in
certain
circumstances.

43.—(1) Where apart from this section a local authority would be under a duty to make a demolition order under Part II of the Act of 1930 with respect to a house with respect to which a building preservation order under section twenty-seven of the Town and Country Planning (Scotland) Act, 1947, is in force, they shall instead make a closing order prohibiting the use of the house for human habitation, and shall serve a copy of the order upon every person upon whom they would be required by subsection (1) of section sixteen of the Act of 1930 to serve a notice issued by them under that subsection.

Preservation
of certain
houses unfit
for human
habitation.

(2) Where a building preservation order under the said section twenty-seven takes effect with respect to a house to which a demolition order made under Part II of the Act of 1930 by a local authority applies (whether or not that order has become operative), the local authority shall determine the demolition order and make a closing order prohibiting the use of the house for human habitation, and shall serve on every such person as aforesaid notice that the demolition order has been determined and a copy of the closing order.

(3) A local authority by whom a closing order is made under this section shall determine the order on being satisfied that the house to which it relates has been rendered fit for human habitation.

(4) The following provisions, namely,—

- (a) subsection (1) of section twenty-three and section twenty-five of the Act of 1925 (which contain provisions for the protection of superiors and of owners of houses);
- (b) subsection (2) of section nineteen of the Act of 1930 (which imposes a penalty for using premises in contravention of a closing order made under Part II of that Act);
- (c) section twenty of the Act of 1930 (which relates to appeals to the sheriff against notices, demands and orders under Part II of that Act); and

PART IV
—*cont.*

(d) section thirty-one of this Act (which empowers local authorities to pay allowances to persons displaced from premises to which closing orders so made apply);

shall have effect in relation to a closing order made under this section, to a refusal to determine such an order, and to a house to which such an order applies as they have effect in relation to a closing order under Part II of the Act of 1930, to a refusal to determine such an order and to a house to which such an order applies as if references therein to a closing order included references to a closing order made under this section and references to Part II of the Act of 1930 included references to this section, and section twenty-nine of that Act (which empowers the sheriff to determine or vary a lease of premises in respect of which a demolition order has become operative) shall have effect in relation to a closing order made under this section which has become operative and to a house to which such an order applies as it has effect in relation to a demolition order which has become operative and to a house to which such an order applies, as if the references to a demolition order included a reference to a closing order made under this section.

Provision as
to Housing
Management
Commissions
to cease to
have effect.

44. Section twenty-three of the Act of 1935 (which empowers local authorities to establish Housing Management Commissions) shall cease to have effect.

PART V
GENERAL

Power of local
authorities to
borrow.

45.—(1) A local authority may borrow under section sixty-eight of the Act of 1925 for the purposes of this Act, and sections seventy-one and seventy-two of that Act (which respectively relate to the issue of local bonds and to the making of loans by the Public Works Loan Commissioners) shall have effect as if references to the purposes of this Act were included in the said sections.

(2) The repeal by this Act of sections seventy-four and seventy-five of the Act of 1925 and section thirty-four of the Act of 1930, shall not affect the power of a local authority to borrow under that Act for the purpose of an advance made or undertaking given under either of those sections or the power of the Public Works Loan Commissioners to lend money to a local authority for any such purpose.

Time and
manner of
payment of
Exchequer
contributions.

46. Subsection (2) of section sixteen of the Act of 1946 (which relates to the time and manner of payment of contributions to be made by the Secretary of State to local authorities under certain enactments) shall have effect as if this Act were included among the Acts therein mentioned.

47. There shall be defrayed out of moneys provided by Parliament— PART V
—cont.

- (a) any increase in the sums payable under section thirty-nine of the Act of 1930 or Part II of the Local Government Act, 1948, out of moneys so provided which is attributable to the passing of this Act; and Expenses.
- (b) any increase in the sums payable under section twenty-six of the Act of 1935 or under the Act of 1946 out of moneys so provided which is attributable to the removal from the Housing (Scotland) Acts, 1925 to 1946, of references to the working classes.

48.—(1) This Act shall be construed as one with the Housing Interpretation. (Scotland) Acts, 1925 to 1946.

(2) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“the Act of 1946” means the Housing (Financial Provisions) (Scotland) Act, 1946;

“development corporation” means a corporation established by an order under section two of the New Towns Act, 1946, by the Secretary of State;

“house” includes any part of a building, being a part which is occupied or intended to be occupied as a separate dwelling, and, in particular, includes a flat;

“sell” and “sale” include feu.

(3) References in this Act to any enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by any subsequent enactment including this Act.

49.—(1) This Act may be cited as the Housing (Scotland) Act, 1949, and the Housing (Scotland) Acts, 1925 to 1946, and this Act may be cited together as the Housing (Scotland) Acts, 1925 to 1949. Short title,
citation, extent
and repeal.

(2) This Act shall extend to Scotland only.

(3) The enactments mentioned in the first and second columns of the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule except, in the case of the enactments mentioned in Part I of the said Schedule, as regards re-development plans approved before the passing of this Act.

SCHEDULES

Section 1.

FIRST SCHEDULE

AMENDMENTS OF THE HOUSING (SCOTLAND) ACTS, 1925 TO 1946
DELETING REFERENCES TO THE WORKING CLASSES*The Housing (Scotland) Act, 1925*
15 & 16 Geo. 5. c. 15

Provision amended and subject matter thereof	Amendment
Section thirteen ... (Prohibition of back- to-back houses).	In subsection (1) the words "for the work- ing classes" shall be omitted.
Section twenty-four ... (Extension of power of making byelaws respecting houses divided into separate dwellings).	In subsection (1) the words "in the case of houses intended for the working classes" shall be omitted.
Section forty-three ... (Provision of houses).	In subsection (1) the words "for the work- ing classes", in both places where they occur, shall be omitted and in paragraph (c) the words "suitable for the purpose" shall be omitted.
Section forty-four ... (Purposes for which land may be acquired by a local authority).	In subsection (1) in paragraphs (a) and (c) the words "for the working classes" shall be omitted; and for paragraph (b) there shall be substituted the following paragraph:— "(b) to acquire (i) houses; (ii) buildings other than houses, being buildings which may be made suitable as houses; together with any lands occupied with the houses or buildings, or any right or interest in houses or in such build- ings as are mentioned in sub-paragraph (ii) of this paragraph;"
Section forty-five ... (Powers of dealing with land acquired).	In subsection (1) in paragraph (b) for the words "that person will erect and main- tain thereon such number of dwelling houses suitable for the working classes as may be fixed by the local authority in accordance with plans approved by them" there shall be substituted the words "that person will erect thereon in accord- ance with plans approved by the local authority, and maintain, such number of

Provision amended
and subject matter
thereof

Amendment

1ST SCH.
—cont.

The Housing (Scotland) Act, 1925 (cont.)

- Section forty-five (*cont.*) houses of such types as may be specified by the authority"; and in paragraph (d) the words "either in regard to the maintenance of the houses as dwelling-houses for the working classes or otherwise" shall be omitted.
- Section fifty-seven ... In subsection (1) the words "for the working classes" shall be omitted.
(Power to promote and assist public utility societies).
- Section seventy-three ... In subsection (1) the words "for the working classes" and the words "which may be made suitable as dwelling-houses for the working classes" shall be omitted; in subsection (2A) the words from "being houses" to "receiving the advance" shall be omitted; in subsection (4) the words "for the working classes" shall be omitted.
(Loans to housing associations, etc.).
- Section seventy-nine ... The words "for persons of the working class" shall be omitted.
(Rehousing obligations).
- Section one hundred and six. The words "for the working classes" shall be omitted.
(Penalty for damage to houses).
- Section one hundred and ten. The words "for the working classes" shall be omitted.
(Power of heir of entail to sell or feu land for housing).
- Section one hundred and twelve. For the words "the housing of the working classes" there shall be substituted the word "housing".
(Exclusion of application of Rent Restriction Acts).
- Fifth Schedule ... In paragraph 1 the words "working-men's" and the words "belonging to the working class" shall be omitted and for the words from "For the purposes of this Schedule" to the words "by whom any houses are occupied" there shall be substituted the words "For the purpose of determining for the purposes of this Schedule the number of persons by whom any dwellings are occupied".
(Rehousing in case of displacement).

1ST SCH.
—cont.Provision amended
and subject matter
thereof

Amendment

The Housing (Scotland) Act, 1925 (cont.)

Fifth Schedule (cont.)

In paragraph 2 the words “ of the working class ” in each place where they occur and the word “ working-men’s ” shall be omitted.

In paragraph 4 the words “ for persons of the working class ” shall be omitted and for the words “ provisions requiring a certain standard of house to be erected ” there shall be substituted the words “ provisions with respect to the standards of the houses that are to be erected ”.

In paragraph 6 the word “ working-men’s ” shall be omitted.

In paragraph 9 the word “ working-men’s ” shall be omitted.

In paragraph 12 sub-paragraph (e) shall be omitted.

The Housing (Scotland) Act, 1930

20 & 21 Geo. 5. c. 40

Section one ...
(Local authority may
declare area to be a
clearance area).

In subsection (1) in paragraph (b) of the proviso, and in subsection (2) the words “ of the working classes ” shall be omitted.

Section nine ...
(Obligations of local
authority with res-
pect to rehousing).

The words “ of the working classes ” shall be omitted.

Section fourteen ...
(Power of local author-
ity to order works
on insanitary house).

In subsection (1) the words “ occupied or is of a type suitable for occupation by persons of the working classes ” shall be omitted.

Section sixteen ...
(Power of local author-
ity to order demoli-
tion or closing of
insanitary house).

In subsection (1) the words “ occupied or is of a type suitable for occupation by persons of the working classes ” shall be omitted.

Section twenty-two ...
(Duty of local author-
ity to review housing
conditions and to
frame proposals).

In subsection (1) the words “ for the work-
ing classes ” in both places where they
occur shall be omitted.

Provision amended
and subject matter
thereof

Amendment

1ST SCH.
—cont.

The Housing (Scotland) Act, 1930 (cont.)

- Section forty-nine ... In subsection (2) the words "or of the
(Interpretation). general standard of housing accommoda-
tion for the working classes in the
district" shall be omitted.

The Housing (Scotland) Act, 1935

25 & 26 Geo. 5. c. 41

- Section one ... In subsection (1) the words "in so far as
(Duty of local author- it is required for persons of the working
ity to inspect and classes" shall be omitted.
report as to over-
crowding).
- Section twenty ... For subsection (5) there shall be substituted
(Power of local author- the following subsection:—
ity to acquire houses " (5) Where a local authority acquire
and other buildings a building which may be made suitable
for housing pur- as a house or a right or interest in such
poses). a building they shall forthwith proceed
to secure that it is so made suitable
either by themselves executing any neces-
sary work or by selling, feuing or leasing
it to some person subject to conditions
for securing that he will so make it
suitable".
- Section twenty-two ... In subsection (1) in paragraph (d) the words
(Scottish Housing Ad- "in relation to the general housing needs
visory Committee). of the working classes" shall be omitted.
- Section twenty-five ... The words "for the working classes" shall
(Definition of "hous- be omitted.
ing association").
- Section twenty-six ... In subsection (2) for the words "the
(Power of local author- housing of the working classes" there
ities to make shall be substituted the word "housing".
arrangements with
housing associa-
tions).
- Section thirty-nine ... In paragraph (d) the word "working-class"
(Obligation to keep shall be omitted.
Housing Revenue
Account).
- Section forty ... In subsection (1) in paragraph (i) the words
(Credits and debits in "for the working classes" where those
Housing Revenue words first occur shall be omitted.
Account).

1st SCH.
—cont.Provision amended
and subject matter
thereof

Amendment

The Housing (Scotland) Act, 1935 (cont.)

- Section forty-seven ... For subsection (5) there shall be substituted
(Conditions to be the following subsection :—
observed in manage- “(5) The authority may grant to any
ment of houses). tenant such rebates from rent subject to
such terms and conditions as they may
think fit.”
- Section eighty-five ... For the words “ the housing of the working
(Fair wages). classes ” there shall be substituted the
word “ housing ”.

The Housing (Agricultural Population) (Scotland) Act, 1938

1 & 2 Geo. 6. c. 38

- Section sixteen ... The words “ of the working classes ” shall
(Additional power of be omitted.
Secretary of State
where local author-
ity are in default).
- Section twenty-one ... In subsection (1) in the definition of
(Interpretation). “ agricultural population ” the words “ of
the working classes ” in both places
where those words occur shall be omitted.

The Housing (Scotland) Act, 1944

7 & 8 Geo. 6. c. 39

- Section three ... In subsection (1) the words “ for the work-
(Grants to Scottish ing classes ” and the word “ such ” where
Special Housing it first occurs shall be omitted.
Association).

The Housing (Financial Provisions) (Scotland) Act, 1946

9 & 10 Geo. 6. c. 54

- Section one ... In subsection (1) the words “ for the work-
(Exchequer contribu- ing classes ” shall be omitted.
tions in respect of
housing accommo-
dation provided by
local authorities).
- Section seventeen ... In subsection (2) the words “ for the
(Amendment of law working classes ” shall be omitted.
as to housing
accounts)

SECOND SCHEDULE

Section 6.

ADAPTATIONS OF THE HOUSING (SCOTLAND) ACTS, 1925 TO 1946,
CONSEQUENTIAL ON PART II OF THIS ACT

1. Section thirty-nine of the Act of 1935 shall have effect as if dwellings provided or improved by a local authority in accordance with approved improvement proposals and land acquired or appropriated by a local authority for the purpose of carrying out such proposals were included amongst the houses and dwellings and land an account of the income and expenditure of the authority in respect whereof the authority are required by that section to keep, and references in section forty of that Act (which relates to credits and debits in Housing Revenue Accounts) to such houses, buildings, land or dwellings as are mentioned in the said section thirty-nine shall be construed accordingly.

2. The section which is directed by subsection (1) of section seventy-six of the Act of 1935 to be substituted for section thirty-seven of the Act of 1930 (and which relates to the failure of a local authority to exercise powers) shall have effect as if the reference to the Housing (Scotland) Acts, 1925 to 1935, included a reference to this Act.

3. Section forty-six of the Act of 1935 (which empowers the Secretary of State to withhold Exchequer contributions in the event of default by a local authority to discharge duties or exercise powers) shall have effect as if the Act of 1946 and this Act and Exchequer contributions thereunder were included among the Acts and Exchequer contributions mentioned in the said section.

4. The Third Schedule to the Act of 1935 shall have effect as if—

(a) at the end of Part I there were added the following words—

“ 12. Sections two and twenty-six of the Housing (Scotland) Act, 1949 ” ; and

(b) in Part III, after paragraph 8C there were inserted the following paragraph—

“ 8D. The contributions payable by the local authority under sections five and twenty-six of the Housing (Scotland) Act, 1949.”

THIRD SCHEDULE

Section 37.

MINOR AMENDMENTS

Section amended

Nature of Amendment

The Housing (Scotland) Act, 1925

15 & 16 Geo. 5. c. 15

Section forty-three	... In subsection (3) the words from “lodging-houses” to “case of a cottage” shall be omitted.
Section forty-five	... Subsection (3) shall be omitted.
Section forty-six	... The section shall be omitted.
Section fifty-two	... The section shall be omitted.

3RD SCH.
—cont.

Section amended	Nature of Amendment
<i>The Housing (Scotland) Act, 1925 (cont.)</i>	
Section fifty-three ...	The section shall be omitted.
Section fifty-four ...	In subsection (1), after the word "dwelling-houses" there shall be inserted the words "and dwellings"; and after the words "repealed by this Act" there shall be inserted the words "and of any dwellings in respect of which contributions are payable under section thirty-five of the Housing (Scotland) Act, 1935."
	In subsection (2), after the word "dwelling-houses" there shall be inserted the words "and dwellings".
Section fifty-five ...	In subsection (1), after the word "dwelling-houses" there shall be inserted the words "and dwellings"; and subsection (2) shall be omitted.
Section fifty-six ...	After the word "dwelling-house" there shall be inserted the words "or a dwelling".
Section fifty-seven ...	In subsection (1), for the word "dwelling-house" there shall be substituted the words "housing accommodation".
Section fifty-eight ...	The section shall be omitted.
Section fifty-nine ...	The section shall be omitted.
Section sixty ...	The section shall be omitted.
Section sixty-three ...	The section shall be omitted.
Section sixty-four ...	The section shall be omitted.
Section sixty-five ...	The section shall be omitted.
Section seventy-three ...	Subsections (6) and (8) shall be omitted and the remainder of the section shall cease to have effect except as regards loans to housing associations or to such persons as are mentioned in paragraph (b) of subsection (2) of the section.
Section seventy-eight ...	The section shall be omitted.
Section eighty ...	In subsection (4) the words "or housing trust" shall be omitted.
Section eighty-one ...	The section shall be omitted.
Section eighty-four ...	The proviso shall be omitted.
Section one hundred and ten.	The words "or housing trust" shall be omitted.
Section one hundred and sixteen.	The section shall be omitted.
Section one hundred and nineteen.	In the definition of "Burgh" for the words "Public Health (Scotland) Act, 1897" there shall be substituted the words "Local Government (Scotland) Act, 1947".
Fifth Schedule ...	In paragraph 8, the words from "and subsections" to the end of the paragraph shall be omitted.

Section amended	Nature of Amendment	3RD SCH. —cont.
<i>The Housing (Scotland) Act, 1930</i>		
20 & 21 Geo. 5. c. 40		
Section four ...	Subsection (2) shall be omitted.	
Section twenty-two ...	Subsection (2) shall be omitted.	
Section thirty-six ...	In subsection (2), in paragraph (c) for the words "Local Government (Scotland) Act, 1929" there shall be substituted the words "Local Government (Scotland) Act, 1947".	
Section forty-eight ...	The section shall be omitted.	
Second Schedule ...	In paragraph 2, in sub-paragraph (iv) the words "and addressed" shall be omitted and for the words "section one hundred and one of the Housing (Scotland) Act, 1925" there shall be substituted the words "subsection (3) of section five of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947".	
<i>The Housing (Scotland) Act, 1935</i>		
25 & 26 Geo. 5. c. 41		
Section twenty-five ...	For the word "houses" there shall be substituted the words "housing accommodation".	
Section twenty-six ...	In subsection (1), paragraph (d) shall be omitted and in subsection (3) for the words "a house" "the house" and "houses" there shall be substituted the words "housing accommodation".	
Section seventy ...	In subsection (1), for sub-paragraph (b) of paragraph (i) there shall be substituted the following sub-paragraph— " (b) the number of storeys in a block of flats and the arrangement of such blocks in relation to one another and the provision where necessary of passenger lifts."	
Section eighty ...	In subsection (3), for the words "either of the two foregoing subsections" there shall be substituted the words "the last foregoing subsection".	
Section eighty-four ...	The section shall be omitted.	

3RD SCH.
—cont.

Section amended

Nature of Amendment

The Housing (Scotland) Act, 1935 (cont.)

- Section eighty-six ... In subsection (1), in the definition of "Large Burgh", for the words "Local Government (Scotland) Act, 1929" there shall be substituted the words "Local Government (Scotland) Act, 1947".

The Housing (Agricultural Population) (Scotland) Act, 1938

1 & 2 Geo. 6. c. 38

- Section twenty ... For the words "seventy-five of the Act of 1925" there shall be substituted the words "section twenty-nine of the Housing (Scotland) Act, 1949".

The Housing (Financial Provisions) (Scotland) Act, 1946

9 & 10 Geo. 6. c. 54

- Section one ... In subsection (2), in paragraph (a) of the proviso, the words "in tenements" in both places where those words occur, shall be omitted; in paragraph (b) of the proviso, for the word "tenement" in each place where it occurs there shall be substituted the words "block of flats", and for the word "houses" there shall be substituted the word "flats", and the following words shall be added at the end of subsection (4):—
"In this section the expression 'hostel' means a building providing residential accommodation for single persons consisting of separate and self-contained dwellings for each of such persons, together with other accommodation available for all of such persons whether or not services (including board and laundry or other facilities or services) are provided."

- Section twenty ... After subsection (3), there shall be inserted the following subsection—

"(4) In this Act—
the expression "dwelling-house" includes "flat", the expression "flat" means a separate and self-contained set of premises constructed for use for the purposes of a dwelling and forming part of a building from some other part of which it is divided

Section amended

Nature of Amendment

3RD SCH.
—cont.*The Housing (Financial Provisions) (Scotland) Act, 1946 (cont.)*

Section twenty—cont.

horizontally, and the expression "block of flats" means a building which contains two or more flats and which consists of three or more storeys exclusive of any storey which is constructed for use for purposes other than those of a dwelling:

Provided that a building shall, notwithstanding that it does not in all parts exceed two storeys in height, be deemed to be a building of three storeys, if the Secretary of State is satisfied that for architectural or other reasons it is desirable to confine the height of part of the building to two storeys".

FOURTH SCHEDULE

Section 49.

PART I

ENACTMENTS REPEALED EXCEPT AS REGARDS RE-DEVELOPMENT
PLANS APPROVED BEFORE THE PASSING OF THIS ACT

Session and Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 41.	The Housing (Scotland) Act, 1935.	Sections thirteen to eighteen; section fifty and fifty-one; in section eighty, in subsection (1) the words "or of the provisions of Part I of this Act relating to re-development areas", subsection (2); and in subsection (4) the words "or subsection (2)"; in section eighty-one, the words "or under the provisions of Part I of this Act relating to re-development areas"; in section eighty-two, in subsection (1), the words "or under section fifteen of this Act", and the words "or the provisions of Part I of this Act relating to re-development areas", and in subsection (4) the words "or this Act"; the Second Schedule; in the Fifth Schedule, in the amendment of section thirty-two of the Act of 1925 the words "or a re-development plan", and the words from "and at the

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 41—cont.	The Housing (Scotland) Act, 1935—cont.	end ” to “ or re-development plan ” where those words occur for the second time, and the amendment of section one hundred and twelve of the Act of 1925.
9 & 10 Geo. 6. c. 54.	The Housing (Financial Provisions) (Scotland) Act, 1946.	In section one, in paragraph (a) of the proviso to subsection (2), sub-paragraph (i) and the words “ in the re-development area ”.

PART II

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 15.	The Housing (Scotland) Act, 1925.	In section thirteen, in subsection (1) the words “ for the working classes ”. In section twenty-four, in subsection (1) the words “ in the case of houses intended for the working classes ”. In the heading of Part III, the words “ FOR THE WORKING CLASSES ”. In section forty-three, in subsection (1) the words “ for the working classes ” in both places where they occur; in paragraph (c) the words “ suitable for the purpose ”; and in subsection (3) the words from “ lodging houses ” to “ case of a cottage ”. In section forty-four, in subsection (1) in paragraphs (a) and (c) the words “ for the working classes ”. In section forty-five, in subsection (1), in paragraph (d) the words “ either in regard to the maintenance of the house as a dwelling-house for the working classes or otherwise ”; and subsection (3). Section forty-six. Section fifty-two. Section fifty-three. Section fifty-five, subsection (2).

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 15—cont.	The Housing (Scotland) Act, 1925—cont.	In section fifty-seven, in subsection (1) the words “for the working classes”. Section fifty-nine. Section sixty. Section sixty-four. Section sixty-five. In section seventy-three, in subsection (1), the words “for the working classes”, and the words “which may be made suitable as dwelling-houses for the working classes”; in subsection (2A) the words from “being houses” to “receiving the advance”; in subsection (4) the words “for the working classes”; subsections (6) to (8); and the remainder of the section except as regards loans to housing associations, or to such persons as are mentioned in paragraph (b) of subsection (2) of the section. Sections seventy-four and seventy-five, except as regards undertakings given before the commencement of this Act. Section seventy-eight. In section seventy-nine, the words “for persons of the working class”. In section eighty, in subsection (4) the words “or housing trust”. Section eighty-one. In section eighty-four, the proviso. In section one hundred and six, the words “for the working classes”. In section one hundred and ten, the words “or housing trust” and “for the working classes”. Section one hundred and sixteen. In section one hundred and nineteen, the definition of “Housing trust”. In the Fifth Schedule, in the heading, the words “IN CASE OF DISPLACEMENT OF PERSONS OF THE WORKING CLASSES”; in paragraph 2 the words “of the working class” in each place where they occur and the word “working-men’s”; in paragraph 4 the words “for persons

4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 15—cont.	The Housing (Scotland) Act, 1925—cont.	of the working class"; in paragraph 6 the word "working-men's"; in paragraph 8 the words from "and subsection" to the end of the paragraph; and in paragraph 12, sub-paragraph (e).
20 & 21 Geo. 5. c. 40.	The Housing (Scotland) Act, 1930.	In section one, in subsection (1), in paragraph (b) of the proviso and in subsection (2) the words "of the working classes". In section four, subsection (2). In section nine, the words "of the working classes". In section fourteen, in subsection (1) the words "occupied or is of a type suitable for occupation by persons of the working classes". In section sixteen, in subsection (1) the words "occupied or is of a type suitable for occupation by persons of the working classes". In section twenty-two, in subsection (1) the words "for the working classes" in both places where they occur; and subsection (2). Section thirty. Section thirty-four. Section forty-eight. In section forty-nine, in subsection (2) the words "or of the general standard of housing accommodation for the working classes in the district".
23 & 24 Geo. 5. c. 16.	The Housing (Financial Provisions) (Scotland) Act, 1933.	Section three, except as respects undertakings given before the commencement of this Act.
25 & 26 Geo. 5. c. 41.	The Housing (Scotland) Act, 1935.	In section one, in subsection (1) the words "in so far as it is required for persons of the working classes". In section twenty-two, in subsection (1), paragraph (b) and in paragraph (d) the words "in relation to the general housing needs of the working classes". Sections twenty-three and twenty-four. In section twenty-five, the words "for the working classes".

Session and Chapter	Short Title	Extent of Repeal
25 & 26 Geo. 5. c. 41—cont.	The Housing (Scotland) Act, 1935—cont.	In section thirty-nine, in paragraph (d) the word “working-class”. In section forty, in subsection (1), in paragraph (i) the words “for the working classes”, in the first place where those words occur. Section sixty-seven. Section eighty-four.
1 & 2 Geo. 6. c. 38.	The Housing (Agricultural Population) (Scotland) Act, 1938.	In section three, subsection (3). In section sixteen, the words “of the working classes”. In section twenty-one, in subsection (1), in the definition of “agricultural population” the words “of the working classes” in both places where those words occur.
2 & 3 Geo. 6. c. 3.	The Housing (Financial Provisions) (Scotland) Act, 1938.	In section nine, paragraph (b) and the proviso.
7 & 8 Geo. 6. c. 39.	The Housing (Scotland) Act, 1944.	In section three, in subsection (1) the words “for the working classes” and the word “such” where it first occurs.
9 & 10 Geo. 6. c. 20.	The Building Materials and Housing Act, 1945.	In section six, subsection (2). In section ten, subsection (6).
9 & 10 Geo. 6. c. 54.	The Housing (Financial Provisions) (Scotland) Act, 1946.	In section one, in subsection (1) the words “for the working classes”, and in subsection (2) in paragraph (a) of the proviso the words “in tenements” in both places where those words occur. In section seventeen, in subsection (2) the words “for the working classes”.

TABLE OF STATUTES REFERRED TO IN THIS ACT

Short Title	Session and Chapter
Small Dwellings Acquisition Act, 1899	62 & 63 Vict. c. 44.
Housing (Scotland) Act, 1925	15 & 16 Geo. 5. c. 15.
Housing (Rural Workers) Act, 1926	16 & 17 Geo. 5. c. 56.
Hire Purchase and Small Debt (Scotland) Act, 1932.	22 & 23 Geo. 5. c. 38.
Rent and Mortgage Interest Restrictions (Amend- ment) Act, 1933.	23 & 24 Geo. 5. c. 32.
Housing (Rural Workers) Amendment Act, 1938	1 & 2 Geo. 6. c. 35.
Housing (Agricultural Population) (Scotland) Act, 1938.	1 & 2 Geo. 6. c. 38.
Building Societies Act, 1939	2 & 3 Geo. 6. c. 55.
Housing (Scotland) Act, 1944	7 & 8 Geo. 6. c. 39.
Building Materials and Housing Act, 1945 ...	9 & 10 Geo. 6. c. 20.
Housing (Financial Provisions) (Scotland) Act, 1946.	9 & 10 Geo. 6. c. 54.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Hill Farming Act, 1946	9 & 10 Geo. 6. c. 73.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.

CHAPTER 62

Patents and Designs Act, 1949

ARRANGEMENT OF SECTIONS

PART I

PATENTS

Application for patent, grant of patent, etc.

Section.

1. Application for patent by assignee.
2. Amendments relating to specifications.
3. Date and term of patent.
4. Priority date of claims of complete specification.
5. Publication of matter described in provisional specification or priority document.
6. Additional powers of comptroller in relation to applications.
7. Additional grounds of opposition to grant of patent.
8. Amendment of patent granted to deceased applicant.
9. Extension of term of patent.
10. Patents of addition.
11. Substitution of applicants, etc.
12. Restoration of lapsed applications for patents.

Licences of right and revocation

13. Voluntary indorsement of patents.
14. Revocation of patent by court.